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1 COMMISSION DECISION of 20.X.2004 relating to a ...

Case Background

- The allegation made in this case involves the participation of certain companies in a cartel that restricted competition in the tobacco market. Specifically, it is claimed that Deltafina played a pivotal role in establishing and implementing the processors' cartel. (Page 83)
- The companies involved in the allegations include Deltafina, Agroexpansión, WWTE, and their parent companies, SCC, SCTC, and TCLT. (Page 90)
- The case was initiated in the year 2001, as indicated by the reference to inspections carried out by the Commission on October 3, 2001. (Page 401)
- The violation pertains to a breach of Article 81 of the Treaty, which prohibits agreements and concerted practices that restrict competition. The conduct involved the exchange of information among undertakings regarding delivery prices, which facilitated the monitoring of current deliveries to ensure the cartel's effectiveness. This behavior constituted a concerted practice aimed at coordinating actions to avoid competition. (Pages 64, 98)

Case Progression

- **Case Initiation:** The case began with the identification of potential infringements of Article 81 of the Treaty, focusing on anti-competitive practices among processors and producer representatives in the tobacco market. This initiation set the stage for further investigation into the conduct of these entities. (Page 3)
- **Preliminary Investigation:** During this phase, the Commission gathered evidence to determine whether there was sufficient basis to proceed. This included assessing the nature of the conduct and its impact on competition. The investigation revealed indications of coordinated practices among undertakings, leading to the decision to continue. (Page 64)
- **Statement of Objections issued:** A formal Statement of Objections was issued, outlining the findings of the investigation and the specific infringements identified. This document served as a basis for the defense phase, detailing the alleged anti-competitive behavior and its implications for market competition. (Page 83)
- **Defense Phase:** The companies involved were given the opportunity to respond in writing within 8–12 weeks and to present their case during an oral hearing. This phase allowed the parties to contest the findings and present evidence in their defense, including arguments regarding their roles and responsibilities in the alleged cartel. (Page 90)
- **Commission Decision:** Following the defense phase, the Commission made a decision regarding the infringements. It was determined that SCC and its subsidiaries exercised decisive influence over their subsidiary's practices, leading to joint responsibility for the

anti-competitive behavior. Fines were proposed based on the gravity and duration of the infringements. (Page 90)

- **Company Decision:** After the Commission's decision, the companies had to decide whether to accept the findings and pay the fines or to appeal the decision. The potential for appeal would lead to further legal proceedings in the General Court and possibly the CJEU, depending on the companies' responses to the Commission's ruling. (Page 3)

Market Definition

- The relevant market in this case was the Spanish market for the purchase of raw tobacco, although Deltafina claimed it did not operate in this market. (Page 83)
- The Commission's analysis indicated that a clear definition of the relevant market was necessary for Deltafina to exercise its rights of defense, but the lack of precision did not negate Deltafina's liability. (Page 83)
- The Commission established that Deltafina had a significant economic interest in the Spanish tobacco market, which allowed it to play a pivotal role in the processors' cartel. (Page 83)
- The case law suggests that the analysis of the relevant market is not always necessary to find a breach of Article 81(1) if the infringement is a restriction of competition by object. (Page 83)
- The Commission's approach involved examining the contributions of various undertakings to the cartel, focusing on their roles rather than strictly defining the market. (Page 83)
- The determination of liability also considered whether the subsidiary acted independently or followed the instructions of the parent company, which is relevant in assessing market conduct. (Page 90)
- The Commission's findings were based on the gravity and duration of the infringement, which influenced the decision-making process regarding the market definition and the imposition of fines. (Page 90)

Legal & Economic Tests

- **Assessment of Concerted Practices:** The case examines the concept of "concerted practice" as defined in Article 81(1) of the Treaty, which prohibits coordination between undertakings that replaces competition with practical cooperation. The legal test involves determining whether there was any direct or indirect contact aimed at influencing market conduct or disclosing intended actions. This assessment is crucial to establish if the undertakings engaged in anti-competitive behavior without a formal agreement. (Page 64)
- **Determination of Parent Company Responsibility:** The legal framework requires establishing whether a parent company is responsible for the conduct of its subsidiary. This involves demonstrating that the subsidiary did not independently decide its market conduct but

followed the parent company's instructions. The test is applied by analyzing the degree of control exerted by the parent company over the subsidiary's operations. (Page 83)

- **Evaluation of Infringements under Article 81:** The Commission assesses whether the conduct of the undertakings constitutes an infringement of Article 81(1) by examining the nature of the conduct, its impact on competition, and its effect on trade between Member States. This involves a detailed analysis of the market dynamics and the specific actions taken by the parties involved to determine if they restricted competition by object or effect. (Page 90)

Conclusion

- The conclusion reached was that SCC, SCTC, and TCLT exercised effective influence over their subsidiary WWTE, making them jointly responsible for the subsidiary's anti-competitive practices after 1996 (page 90).
- The Commission determined that the conduct of the processors, which was deemed to restrain competition, had likely ceased by October 2001, but there was no confirmation regarding the cessation of similar conduct by producer representatives (page 90).
- The Commission required the involved undertakings to end any infringements and to refrain from future agreements or practices that could have a similar anti-competitive effect (page 90).
- Fines were imposed on various parties, with Deltafina receiving a fine of EUR 11,880,000, and other fines including EUR 3,631,500 for Cetarsa, EUR 1,822,500 for WWTE (with SCC, SCTC, and TCLT jointly and severally liable), and EUR 2,592,000 for Agroexpansión (page 99).
- The fines were determined based on the gravity and duration of the infringements, with the Commission considering aggravating and mitigating circumstances in the assessment (page 90).
- Deltafina's request for leniency was partially granted, resulting in a 10% reduction in its fine due to its failure to clarify its cooperation with the Commission during the proceedings (page 99).

Final report of the Hearing Officer — Case COMP/38.866

Case Background

- The allegation made in this case is that six groups of undertakings participated in a cartel that involved sharing a large part of the EU market by allocating sales quotas and customers, as well as coordinating prices and sales conditions. (Page 13)
- The companies involved in the allegations include Ercros, FMC Foret, Kemira, Tessenderlo, Quimitecnica, and Timab/CFPR. (Page 13)
- The year of case initiation was 2009, specifically on 19 February. (Page 14)

- The violation pertains to a single and continuous infringement of Article 101 of the TFEU and Article 53 of the EEA Agreement, which lasted from at least 19 March 1969 until at least 10 February 2004. The cartel's activities were conducted across several Member States, including Austria, Belgium, Denmark, Finland, France, Germany, Hungary, Ireland, the Netherlands, Norway, Sweden, and the UK, with Spain and Portugal being included from 1992 and 1993, respectively. (Page 13)

Case Progression

- **Case Initiation:** The case was initiated following an immunity application from Kemira in November 2003, which led to unannounced inspections in February 2004. This marked the beginning of the investigation into the cartel involving animal feed phosphates. (Page 13)
- **Preliminary Investigation:** The investigation found sufficient evidence of a cartel that lasted approximately 35 years, involving six groups of undertakings. This led to the continuation of the proceedings rather than closing the case due to insufficient evidence or accepted commitments. (Page 13)
- **Statement of Objections issued:** On 23 November 2009, the Commission issued a bundle of six statements of objections to the involved parties, detailing the allegations of a continuous infringement of competition law from 1969 to 2004. (Page 14)
- **Defense Phase:** The settling parties were given a two-week period to respond to the statement of objections, with one party receiving a two-day extension. Timab/CFPR was granted a four-week response period, later extended by five weeks. An oral hearing was held on 24 February 2010, where all but one group attended. (Page 14)
- **Commission Decision:** The draft decision reflected the objections from the statement of objections and the settlement submissions. It was noted that the duration of the infringement for Timab/CFPR was significantly reduced based on their submissions. (Page 14)
- **Company Decision:** Following the Commission's decision, the settling parties confirmed their commitment to the settlement procedure, while Timab/CFPR opted for the ordinary procedure, indicating a potential for further legal proceedings depending on their response to the decision. (Page 14)

Market Definition

- The market in this case was defined as the production of animal feed phosphates, which involved six groups of undertakings. (Page 13)
- The cartel lasted approximately 35 years, from 1969 to 2004, and covered multiple Member States, indicating a broad geographic market scope. (Page 13)
- The Commission's statement of objections indicated that the undertakings participated in a single and continuous infringement of competition law, specifically Article 101 of the TFEU and Article 53 of the EEA Agreement. (Page 13)

- The infringement involved sharing a significant portion of the EU market by allocating sales quotas and customers, as well as coordinating prices and sales conditions among the cartel members. (Page 13)
- The geographic scope of the cartel included Austria, Belgium, Denmark, Finland, France, Germany, Hungary, Ireland, the Netherlands, Norway, Sweden, and the UK, with Spain and Portugal added later. (Page 13)
- The process to define the market included unannounced inspections and subsequent settlement discussions, where the undertakings were informed about the objections and provided access to evidence. (Page 14)
- The draft decision reflected the objections raised in the statement of objections and incorporated the settlement submissions from the parties, ensuring that their views were considered in the final decision. (Page 14)

Legal & Economic Tests

- **Legal Test under Article 101 of the TFEU and Article 53 of the EEA Agreement:** This test assesses whether the actions of the undertakings constituted a breach of competition law by engaging in anti-competitive practices such as price coordination and market allocation. In this case, the Commission's statement of objections indicated that the undertakings participated in a continuous infringement from 1969 to 2004, which was evaluated based on their market behavior across several Member States. The legal framework provided the basis for determining the existence of a cartel. (Page 13)
- **Settlement Procedure Evaluation:** The process involved assessing whether the settling parties were willing to engage in settlement discussions and if their submissions reflected the objections raised by the Commission. The settling parties confirmed that they had sufficient opportunity to express their views and that the statement of objections aligned with their settlement submissions. This evaluation ensured that the rights of the parties were respected during the proceedings. (Page 14)
- **Duration of Infringement Assessment:** For Timab/CFPR, the duration of the infringement was critically examined, leading to a significant reduction from approximately 25 years to less than 11 years based on their written and oral submissions. This assessment involved analyzing the timeline of the alleged anti-competitive behavior to determine the appropriate length of the infringement for potential penalties. (Page 14)

Conclusion

- The case involved a cartel among six groups of undertakings in the production of animal feed phosphates, which lasted approximately 35 years, from 1969 to 2004, across multiple Member States (page 13).
- A draft decision was prepared for the settling parties, reflecting their settlement submissions and retaining the objections raised in the statement of objections, while a

separate decision was to be adopted for Timab Industries S.A. and its parent company, which did not settle (page 14).

- The statement of objections indicated that the undertakings participated in a continuous infringement of Article 101 of the TFEU and Article 53 of the EEA Agreement, involving market sharing, price coordination, and allocation of sales quotas (page 13).
- The duration of the infringement for Timab/CFPR was significantly reduced from approximately 25 years to less than 11 years based on their written and oral submissions (page 14).
- The Commission announced its intention to adopt an infringement decision and impose fines on the involved parties, although specific fines were not detailed in the provided information (page 13).
- The right to be heard for all participants was respected throughout the proceedings, with all settling parties confirming they had sufficient opportunity to express their views (page 14).

Final Report of the Hearing Officer — Mushrooms (Riberebro) (AT.39965)

Case Background

- The allegation made in this case is an infringement of Article 101 of the Treaty on the Functioning of the European Union and Article 53 of the EEA Agreement, specifically involving price coordination and customer allocation for canned mushrooms. (Page 4)
- The companies against which the allegation is made are Grupo Riberebro Integral S.L. and Riberebro Integral S.A.U., collectively referred to as Riberebro. (Page 4)
- The year of case initiation is 2015, with the statement of objections being adopted on 27 May 2015. (Page 4)
- The violation involved Riberebro coordinating prices and allocating customers for canned mushrooms across the EEA from 1 September 2010 to 28 February 2012. This was conducted through a cartel arrangement, which Riberebro did not contest in terms of the facts or legal assessment but only in relation to the level of the fine. The company was provided with the investigation file and given a six-week period to respond to the statement of objections. (Page 4)

Case Progression

- **Case Initiation:** The case was initiated regarding an infringement of Article 101 of the Treaty on the Functioning of the European Union and Article 53 of the EEA Agreement, focusing on price coordination and customer allocation for canned mushrooms between September 1, 2010, and February 28, 2012. (Page 4)
- **Preliminary Investigation:** The Commission conducted a preliminary investigation which led to the identification of evidence supporting the existence of a cartel involving Riberebro. This evidence was sufficient to proceed to the next stage. (Page 4)

- **Statement of Objections issued:** On May 27, 2015, the Commission issued a Statement of Objections against Riberebro, notifying them of the findings and allegations. This document included the details of the alleged infringement and was accompanied by a CD-ROM containing the investigation file. (Page 4)
- **Defense Phase:** Riberebro responded to the Statement of Objections within the six-week timeframe, acknowledging the facts and legal assessment but contesting the level of the fine. They did not request an oral hearing, which is typically an opportunity for further defense. (Page 4)
- **Commission Decision:** Following the defense phase, the Commission would issue a decision based on the findings. In this case, Riberebro's lack of contestation regarding the facts suggests that the decision would likely confirm the infringement and impose a fine. (Page 4)
- **Company Decision:** After the Commission's decision, Riberebro would have the option to accept the findings and pay the fine or appeal the decision, which would lead to further legal proceedings. The absence of an oral hearing indicates that Riberebro was prepared to accept the process without further contestation. (Page 4)

Market Definition

- The market considered in this case was the canned mushrooms market throughout the EEA. (Page 4)
- The infringement involved price coordination and customer allocation among the involved parties. (Page 4)
- The Commission adopted a decision on 25 June 2014, addressing eight legal entities involved in the cartel settlement procedure. (Page 4)
- Riberebro, which did not opt for the settlement procedure, received a statement of objections on 27 May 2015. (Page 4)
- Riberebro did not contest the facts or legal assessment but focused on the appropriate level of the fine in its response. (Page 4)
- The hearing officer confirmed that Riberebro was afforded the opportunity to express its views on the objections raised. (Page 4)
- The procedural rights of Riberebro were deemed respected, as no requests or complaints were made to the hearing officer. (Page 4)

Legal & Economic Tests

- **Infringement of Article 101 of the Treaty on the Functioning of the European Union and Article 53 of the EEA Agreement:** This test assesses whether there has been a violation of competition laws through practices such as price coordination and customer allocation. In this case, the infringement was identified as occurring between 1 September 2010 and 28 February 2012, focusing on the actions of Riberebro in relation to canned mushrooms. The

process involved an investigation by the Commission, which included gathering evidence and issuing a statement of objections. (Page 4)

- **Assessment of Procedural Rights:** This test evaluates whether the entity involved (Riberebro) was given a fair opportunity to respond to the allegations against it. The Commission provided Riberebro with a statement of objections and a CD-ROM containing the investigation file, allowing them six weeks to reply. The hearing officer confirmed that Riberebro's procedural rights were respected, as they did not raise any requests or complaints. (Page 4)
- **Determination of Appropriate Level of Fine:** This test involves analyzing the severity of the infringement to establish a suitable financial penalty. Riberebro did not contest the facts or legal assessment but argued for a different fine level. The process for determining the fine typically includes evaluating the nature of the infringement, its impact on competition, and any mitigating factors presented by the involved parties. (Page 4)

Conclusion

- The case involved an infringement of Article 101 of the Treaty on the Functioning of the European Union and Article 53 of the EEA Agreement, specifically concerning price coordination and customer allocation for canned mushrooms between September 1, 2010, and February 28, 2012 (page 4).
- The Commission had previously adopted a decision on June 25, 2014, addressing eight legal entities involved in the cartel settlement procedure, while the current draft decision was specifically directed at Grupo Riberebro Integral S.L. and Riberebro Integral S.A.U., which did not participate in the settlement (page 4).
- Riberebro received a statement of objections on May 27, 2015, and was given access to the investigation file, with a six-week period to respond, during which they did not contest the facts or legal assessment but argued about the fine's level (page 4).
- The hearing officer concluded that the draft decision addressed only objections for which Riberebro had the opportunity to express its views, confirming that Riberebro's procedural rights were respected throughout the process (page 4).
- There is no specific mention of the final fine imposed on Riberebro in the provided information, as the focus was on the procedural aspects and the response to the statement of objections (page 4).

What other questions do you have?